

Touch or keypad?

Best Touch Screen Phones With a Full QWERTY
Keypad: <http://bit.ly/cvqOuI>

Godrej TVs

Godrej launches Game LCD TV:
<http://bit.ly/bSVTwn>

Consumer protection

COMPLAINTS RECEIVED

Mobile Phones

Case File #855

1. Subject: My Boss Mobile phone is not working

I purchased a Boss mobile phone recently from Naaptol.com. My mobile phone has not been switching on for the past couple of weeks. I have tried getting it checked at most shops, but none of them were of any help. In lieu of no company service centre, I'm in a fix and feel completely cheated and dissatisfied. I have even asked all my near and dear ones never to trust any such web sites or their products.

Megha Aggarwal

Answer by Consumermate:

Thanks for sharing your views. Do not feel cheated as you can always take legal recourse against the company. At this stage, you can write a registered letter to the company about your problems in shape of a legal demand notice. You can call upon them to rectify all your problems within 15 days failing which you can file consumer complaint with the consumer court. I hope some sense will prevail over them and they will sort the things.

Case File #872

HTC Tatoo mobile is provided with 2G feature instead of 3G

I bought an HTC Tatoo mobile in November 2009. When I visited the HTC site, it described it as a 3G-enabled phone. Also when I purchased the mobile from their authorised dealer M/s Ascentel from Commercial Street branch, Bangalore, I was told it was a 3G mobile. Later when BSNL introduced 3G services in Bangalore, I was surprised to note that it was only a 2G mobile. When I contacted HTC, I was told that it was a 2G mobile marketed in India, and 3G in other parts of the world. Initially, the HTC site went into the world page and now the company has changed and it directs you to the India site of the company. The retailer also says he was unaware of the features of the handset sold in India. Repeated complaints with the company over phone

and email has yielded no results. They say it's my fault for having viewed the international site and not the Indian site, and want me to sort out the problem with the retailer. The discussions with the retailer while buying the handset was only oral, hence there is no proof for what they told me about the features. Once, the company told me they are coordinating with the retailer to sort out the issue and even had asked me to forward a scanned copy of purchase proof, which I did. Is there any remedy for me?

Sudhakar Sundersingh

Answer by Consumermate:

Dear Customer,
Yours is a typical case of a big company backing out once the product is sold. Any company that sells a product is duty bound to provide all essential features in a product that they have sold for a consideration. For now, you can write a legal demand notice to them for selling a different and unwanted product. It is a case of gross misrepresentation and negligence on part of the retailer. They just cannot fool you by representing anything just to sell the product. In your notice, you can ask for the damages for the loss of work incurred due to non function of the mobile. I hope things will be sorted out.

Miscellaneous

Case File #963

Nokia care is not repairing the phone under warranty

I have a Reliance CDMA Nokia handset. It had a problem that it used to display CONTACT SERVICE and neither can I make nor receive any calls. But instead of repairing the mobile, they told me to take the handset in same condition because they were not able to repair the mobile in guarantee or warranty period. What should I do?

Vijay Kumar Bagaria

Answer by Consumermate:

Dear Customer,

As long as the product is under warranty/guarantee, you have a legitimate right to get it repaired. The company cannot wash off its hand from its liability when the complaint or any problematic issue is raised during the guarantee period.

Case File #969

Subject: Service center of HTC is not providing customer satisfaction

I have an HTC T3320 Touch 2. My complaint number is 19419. I have been to the service centre twice. First the customer service advisor informed me to upgrade the handset as it was getting switch off. After 2-3 days I was facing the same problem. Then I visited the service centre again on August 24th. They asked me to submit the cellphone and advice to call after 24 hours. When I contacted the service centre, they asked me to wait for a week. I spoke to the manager who told me to call after 24 hours. When I contacted them, they said that the phone is defective, and that they're investigating the matter and would inform that they will contact in 48 hours. What kind of customer satisfaction is this? We either want our money or a replacement. Kindly reply.

Bhupat Singh

Answer by Consumermate:

Dear Customer,
We appreciate your stand, and even more the fact that you're aware of your rights as a consumer, and have made it clear to the phone company that you will be taking action in case they don't listen to you. The gravest mistake committed by most consumers is of not pursuing matters related to rights. The only thing that we suggest is that you write a letter and send it to them via registered post, containing all the details of your complaint. In case they don't come up with a solution, then you may go ahead with your complaint in the district forum. I hope some sense will prevail over them at this stage itself, and that they sort out things.